

Court No. - 9

Case :- WRIT - C No. - 10772 of 2021

Petitioner :- P And R Infra Project Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And
3 Others

Counsel for Petitioner :- Anas Mahboob, Bidhan
Chandra Rai

Counsel for Respondent :- Narendra Kumar
Tiwari, Ajay Singh

Hon'ble Sanjay Yadav, Acting Chief Justice
Hon'ble Prakash Padia, J.

Per Hon'ble Prakash Padia, J.

1. The matter is taken up through video conferencing.
2. The petitioner has preferred the present petition inter-alia with the prayer to quash the order dated 19.01.2021 passed by the Executive Engineer, Electricity Distribution Division (EDD-I), Ghazipur/respondent no.4, copy of which is appended as annexure 13 to the writ petition. A further prayer has been made to direct the aforesaid respondent to exclude the amount of compounding from the order of assessment dated 19.01.2021.
3. The facts as narrated in the writ petition are that the petitioner is a consumer of H.V.-2 Category having Connection No.2524156581 Load 250 K.V.A. The same was sanctioned by the department in the year 2017. The petitioner was provided electricity through independent feeder constructed by the petitioner. It is alleged that the respondent department wanted to give electricity from the aforesaid feeder to one Anil Yadav @ Mahender under the scheme. An objection was raised by the

petitioner in this regard before the Executive Engineer on 20.2.2019.

4. It is argued that highly excessive bills were issued by the department, despite repeated request the bills were not corrected hence an application was moved by the petitioner before the respondent no.4 on 11.6.2019 to correct the electricity bills to enable the petitioner to deposit the same. It is argued that no decision was taken on the aforesaid. Electricity supply of the petitioner was disconnected on account of non payment of electricity bills on 16.9.2019. On 27.9.2019 a checking was conducted in which electricity line of the petitioner was found connected without payment of electricity bills. On 02.12.2019 a provisional assessment bill was issued to the petitioner for a sum of Rs.7,20,227/-. Along-with the provisional assessment bill of Rs.7,20,227/- a notice was issued asking the petitioner to submit his objection against the assessment bill and compounding charges of Rs.50,00,000/- The objections were submitted by the petitioner on 20.12.2019 denying the allegation of theft/re-connection of electricity. The objection filed by the petitioner was not being considered hence the petitioner filed a writ petition before the Court being Civil Misc. Writ Petition No.8788 of 2020 (P & R Infra Projects Limited Vs. State of U.P. & 2 others), which was disposed of by the Coordinate Bench of this Court on 9.6.2020. The order dated 9.6.2020 is reproduced hereinbelow :-

“Heard Sri A.K. Malviya, learned counsel for the petitioner, Sri B.P. Singh Kachhawah, learned Standing Counsel for the State and Sri Mahboob Ahmad, learned counsel for

respondent nos. 2 and 3.

Counsel for respondent nos. 2 and 3 submits that against provisional assessment order, the petitioner has already filed an objection (Annexure No. 13 to the writ petition) before the Executive Engineer-respondent no.3 and the said authority is likely to pass an order within ten days.

Counsel for petitioner submits that the petition can be disposed of by directing the Executive Engineer to pass a speaking order on the objection filed by the petitioner. Considering the facts and circumstances of the case, the petition is disposed of directing the Executive Engineer to dispose of the objection filed by the petitioner by a speaking order within ten days from the date of production of a certified copy of this order before him.

It is made clear that this Court has observed nothing on the merits of the case and the competent authority to pass the order in accordance with law.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioner alongwith a self attested identity proof of the said person (s) (preferably Aadhar Card) mentioning the mobile number (s) to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing."

5. It is argued that without considering the objection submitted by the petitioner, an order dated 22.6.2020 was passed by the respondent no.4 against the petitioner confirming the demand of Rs.7,20,227/- + 50,00,000/- total Rs.57,20,227/-. Aggrieved against the

aforesaid order another writ petition was filed by the petitioner being Civil Misc. Writ Petition No.15843 of 2020, which was disposed of by another Coordinate Bench of this Court vide judgement and order dated 20.10.2020. By the aforesaid order dated 20.10.2020, the order passed by the respondent no.4 dated 22.6.2020 was set aside only on the ground that the aforesaid order dated 22.6.2020 is a non speaking order. The Court by the aforesaid order dated 20.10.2020 further directs to pass a fresh order on the petitioner's objection in accordance with law. Pursuant to the same, the impugned order has been passed by the respondent no.4 on 19.1.2021 which is under challenge in the present writ petition. It further reveals from perusal of the record that an FIR was also lodged on 3.10.2019 against the petitioner by the respondent-department under Section 138 (1) (b) of the Electricity Act, 2003.

6. Heard learned counsel for the parties and perused the record.

7. From perusal of the record it appears that a notice dated 2.12.2019 was issued to the petitioner on the ground that the electricity connection was unauthorizedly re-connected by the petitioner. The reasons which were recorded in the aforesaid order dated 2.12.2019 is reproduced below :-

“कटे हुए संयोजन का पुनः केबल द्वारा जोड़कर चलाया जाना (धारा 138 B के अर्न्तगत कार्यवाही)”

8. For the above reason, the provisional assessment was made and the petitioner was asked to file his objection. The relevant part of notice of provisional assessment is as under :

“ अतः एतद्द्वारा आपके उपरोक्त सयोजन पर पाई गई अनियमितता हेतु निम्नानुसार राजस्व निर्धारण किया जाता है।

रूपया राजस्व निर्धारण रू-7,20,227=00 समन
शुल्क रू-50,00,000=00

पुनश्च आप से आपेक्षित है कि आप विलम्बतम दिनांक
20.12.2019 समय 10 बजे से 5 बजे तक अपना पक्ष रखे।”

9. Reply to the aforesaid was given by the petitioner, since no action was taken hence Writ C No.8788 of 2020 was preferred by the petitioner, the same was disposed of on 9.6.2020 directing the Executive Engineer to pass speaking order on the objection filed by the petitioner. Pursuant to the same the order dated 22.6.2020 was passed by him. Not satisfied with the same another petition being Writ C No.15843 of 2020 was preferred by the petitioner. The aforesaid writ petition was finally allowed. The order dated 22.6.2020 was set aside only on the ground that the same is a non-speaking order. Further directions were given to the respondent no.4 to pass a fresh order after considering the objections raised by the petitioner. Pursuant to the aforesaid order impugned has been passed.

10. From perusal of the record it is established that after issuance of notice the provisional assessment of Rs.7,20,227/- and compounding charges of Rs.50,00,000/-, the petitioner was provided opportunity to file his objection against the proposed provisional assessment. The petitioner had filed his objection to the said provisional assessment. In pursuance to the order dated 20.10.2020 passed by this Court in Writ C No.15843 of 2020, a reasoned order confirming the

provisional assessment has been passed on 19.1.2021. The order dated 19.1.2021 amount an assessment of charges. The petitioner against the aforesaid assessment had statutory alternative remedy of filing an appeal under Section 126 of the Electricity Act, 2003 read with U.P. Electricity Supply Code 2005 read with Code 6.8(d). The case of the petitioner is that he himself has not reconnected the electricity supply. The factual matrix of reconnection of electric supply and levy of various charges cannot be properly adjudicated under Article 226 of the Constitution of India.

11. So far as the argument of learned counsel for the petitioner that earlier this Court has entertained the writ petition against the assessment made by order dated 22.6.2020 is concerned, the said writ petition was entertained only on the ground that the order impugned in the said writ petition, i.e. the order dated 22.6.2020 was a non-speaking order. The aforesaid order being a gross violation of principle of natural justice, the writ petition was entertained and the order dated 20.10.2020 was passed.

12. So far as the argument of learned counsel for the petitioner that against the imposition of compounding charges, no appeal is maintainable under Section 126 of the Electricity Act, 2003. In the notice of provisional assessment, the amount of assessment of electricity charges and compounding fee was mentioned and the petitioner was required to show cause against the said imposition of both the charges. The petitioner has filed his objection against the assessment of electricity charges and compounding fee which has been decided

by order dated 19.1.2021 passed by the respondent no.4. Since the compounding charges had been made part of assessment, as such the appeal against the final assessment dated 19.1.2021 is maintainable.

13. The order impugned dated 19.1.2021 requires adjudication of various facts which is not permissible in exercise of jurisdiction under Article 226, especially when statutory alternative remedy under Section 126 of the Electricity Act 2003 is available, the Court is not inclined to entertain the writ petition.

14. Thus the writ petition is dismissed on the ground of alternative remedy.

15. Since the period of one month for filing the appeal has expired, it is hereby directed that in case the petitioner files appeal within period of eight weeks, the same shall not be rejected on the ground of delay and the Authority will decide the appeal strictly in accordance with law.

16. It is made clear that this Court has observed nothing on merit of the case and the Appellate Authority has to pass the order strictly in accordance with law without being influenced by any of the observation mentioned in the present order.

Order Date :- 19.4.2021
Pramod Tripathi

(Prakash Padia,J.) (Sanjay Yadav,A.C.J.)

Court No. - 3

Time Extension Application No. 2 of 2021

IN

Case :- WRIT - C No. - 10772 of 2021

Petitioner :- P And R Infra Project Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Anas Mahboob, Bidhan Chandra Rai

Counsel for Respondent :- Narendra Kumar Tiwari, Ajay Singh

Hon'ble Naheed Ara Moonis, J.

Hon'ble Prakash Padia, J.

Heard Shri Anas Mahboob, learned counsel for the applicant-petitioner and Shri Udit Chandra, learned counsel for the respondent-Corporation.

By means of this application, the applicant-petitioner has prayed for extension of time to comply with the order dated 19.4.2021 passed by this Court.

Learned counsel for the petitioner is allowed four weeks' further time from today to comply with the order dated 19.4.2021.

The application stands disposed of.

Order Date :- 9.9.2021

Ishrat